

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3258

By: Hardin

AS INTRODUCED

An Act relating to the Council on Law Enforcement Education and Training; amending 70 O.S. 2021, Section 3311, as last amended by Section 1, Chapter 65, O.S.L. 2024 (70 O.S. Supp. 2025, Section 3311), which relates to the creation of the Council on Law Enforcement Education and Training (CLEET); modifying membership requirements of CLEET Council members; reducing amount of CLEET Council members; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3311, as last amended by Section 1, Chapter 65, O.S.L. 2024 (70 O.S. Supp. 2025, Section 3311), is amended to read as follows:

Section 3311. A. There is hereby created a Council on Law Enforcement Education and Training which shall be, and is hereby declared to be, a governmental law enforcement agency of the State of Oklahoma, body politic and corporate, with powers of government and with the authority to exercise the rights, privileges and functions necessary to ensure the professional training and continuing education of law enforcement officers in this state.

1 These rights, privileges and functions include, but are not limited
2 to, those specified in Sections 3311 through 3311.15 of this title
3 and in the Oklahoma Security Guard and Private Investigator Act and
4 the Bail Enforcement and Licensing Act. The Council shall be
5 authorized to require agency employees and the employees of agency
6 contractors in positions to have access to Oklahoma Peace Officer
7 records, Oklahoma Security Guard and Private Investigator records,
8 Bail Enforcement and Licensing Act records, to be subject to a
9 criminal history search by the Oklahoma State Bureau of
10 Investigation, as well as be fingerprinted for submission of the
11 fingerprints through the Oklahoma State Bureau of Investigation to
12 the Federal Bureau of Investigation for a national criminal history
13 check. The Council shall be the recipient of the results of the
14 record check. In accordance with Section 150.9 of Title 74 of the
15 Oklahoma Statutes, this includes a national criminal record with a
16 ~~finger print~~ fingerprint analysis. The Council shall be composed of
17 ~~thirteen (13)~~ seven (7) members as follows:

18 1. ~~The Commissioner of the Department of Public Safety, or~~
19 ~~designee;~~

20 2. ~~The Director of the Oklahoma State Bureau of Narcotics and~~
21 ~~Dangerous Drugs Control, or designee;~~

22 3. ~~The Director of the Oklahoma State Bureau of Investigation,~~
23 ~~or designee;~~

24

1 ~~4. One member~~ Three members appointed by the Governor as
2 follows:

3 a. one member who shall be a law enforcement
4 administrator representing a tribal law enforcement
5 agency,

6 b. one member who shall be a sheriff of a county with a
7 population over one hundred fifty thousand (150,000),
8 as determined by the latest Federal Decennial Census,
9 and

10 c. one member who shall be a chief of police of a
11 municipality whose law enforcement officers are
12 required to attend the peace officer certification
13 program conducted by and at the operational
14 headquarters of CLEET in Ada, Oklahoma;

15 ~~5. One member appointed by the Governor who shall be a chief of~~
16 ~~police of a municipality with a population over one hundred thousand~~
17 ~~(100,000), as determined by the latest Federal Decennial Census;~~

18 ~~6. One member appointed by the Board of Directors of the~~
19 ~~Oklahoma Sheriffs' Association who shall be a sheriff of a county~~
20 ~~with a population under twenty-five thousand (25,000), as determined~~
21 ~~by the latest Federal Decennial Census;~~

22 ~~7. One member appointed by the Oklahoma Association of Chiefs~~
23 ~~of Police who shall be a chief of police representing a municipality~~
24

1 ~~with a population over ten thousand (10,000), as determined by the~~
2 ~~latest Federal Decennial Census;~~

3 ~~8. One member shall be appointed by the Board of Directors of~~
4 ~~the Oklahoma Sheriffs' Association who shall be a sheriff of a~~
5 ~~county with a population of twenty-five thousand (25,000) or more,~~
6 ~~as determined by the latest Federal Decennial Census;~~

7 ~~9. One member appointed by the Board of Directors of the~~
8 ~~Fraternal Order of Police who shall have experience as a training~~
9 ~~officer;~~

10 ~~10. One member appointed by the Chancellor of Higher Education~~
11 ~~who shall be a representative of East Central University;~~

12 ~~11. One member appointed by the Board of Directors of the~~
13 ~~Oklahoma Sheriffs and Peace Officers Association who shall be a~~
14 ~~full-time law enforcement officer in good standing with CLEET within~~
15 ~~a county with a population under fifty thousand (50,000);~~

16 ~~12. The 2. Two members appointed by the President Pro Tempore~~
17 ~~of the Oklahoma State Senate shall appoint one member from a list of~~
18 ~~three or more nominees submitted by a statewide organization~~
19 ~~representing cities and towns that is exempt from taxation under~~
20 ~~federal law and designated pursuant to the provisions of the~~
21 ~~Internal Revenue Code, 26 U.S.C., Section 170(a) as follows:~~

22 a. one member who shall be a sheriff of a county with a
23 population of not less than fifty thousand (50,000)
24

1 and not exceeding one hundred thousand (100,000), as
2 determined by the latest Federal Decennial Census, and

3 b. one member who shall be a chief of police of a
4 municipality whose law enforcement officers are
5 required to attend the peace officer certification
6 program conducted by and at the operational
7 headquarters of CLEET in Ada, Oklahoma; and

8 ~~13. The~~ 3. Two members appointed by the Speaker of the
9 Oklahoma House of Representatives ~~shall appoint one member from a~~
10 ~~list of three or more nominees submitted by an organization that~~
11 ~~assists in the establishment of accreditation standards and training~~
12 ~~programs for law enforcement agencies throughout this state as~~ as
13 follows:

14 a. one member who shall be a sheriff of a county with a
15 population not exceeding fifty thousand (50,000), as
16 determined by the latest Federal Decennial Census, and

17 b. one member who shall be a chief of police of a
18 municipality whose law enforcement officers are
19 required to attend the peace officer certification
20 program conducted by and at the operational
21 headquarters of CLEET in Ada, Oklahoma.

22 The Executive Director selected by the Council shall be an ex
23 officio member of the Council and shall act as Secretary. The
24 Council on Law Enforcement Education and Training shall select a

1 chair and vice-chair from among its members. Members of the Council
2 on Law Enforcement Education and Training shall not receive a salary
3 for duties performed as members of the Council, but shall be
4 reimbursed for their actual and necessary expenses incurred in the
5 performance of Council duties pursuant to the provisions of the
6 State Travel Reimbursement Act.

7 B. The Council on Law Enforcement Education and Training is
8 hereby authorized and directed to:

9 1. Appoint a larger Advisory Council to discuss problems and
10 hear recommendations concerning necessary research, minimum
11 standards, educational needs, and other matters imperative to
12 upgrading Oklahoma law enforcement to professional status;

13 2. Promulgate rules with respect to such matters as
14 certification, revocation, suspension, withdrawal and reinstatement
15 of certification, minimum courses of study, testing and test scores,
16 attendance requirements, equipment and facilities, minimum
17 qualifications for instructors, minimum standards for basic and
18 advanced in-service courses, and seminars for Oklahoma police and
19 peace officers;

20 3. Authorize research, basic and advanced courses, and seminars
21 to assist in program planning directly and through subcommittees;

22 4. Authorize additional staff and services necessary for
23 program expansion;
24

1 5. Recommend legislation necessary to upgrade Oklahoma law
2 enforcement to professional status;

3 6. Establish policies and regulations concerning the number,
4 geographic and police unit distribution, and admission requirements
5 of those receiving tuition or scholarship aid available through the
6 Council. Such waiver of costs shall be limited to duly appointed
7 members of legally constituted local, county, and state law
8 enforcement agencies on the basis of educational and financial need;

9 7. Appoint an Executive Director to direct the staff, inform
10 the Council of compliance with the provisions of this section and
11 perform such other duties imposed on the Council by law. An
12 Executive Director appointed by the Council must qualify for the
13 position with a bachelor or higher degree in law enforcement from an
14 accredited college or university, or a bachelor or higher degree in
15 a law-enforcement-related subject area, and a minimum of five (5)
16 years of active law enforcement experience including, but not
17 limited to, responsibility for enforcement, investigation,
18 administration, training, or curriculum implementation.

19 The Executive Director of the Council on Law Enforcement
20 Education and Training may hire an Assistant Director to perform
21 such duties as directed by the Executive Director.

22 The Executive Director of the Council on Law Enforcement
23 Education and Training may commission CLEET staff as peace officers
24 for purposes consistent with the duties of CLEET as set out in state

1 law. The powers and duties conferred on the Executive Director or
2 any staff member appointed by the Executive Director as a peace
3 officer shall not limit the powers and duties of other peace
4 officers of this state or any political subdivision thereof. The
5 Executive Director or any staff member appointed by the Executive
6 Director as a peace officer may, upon request, assist any federal,
7 state, county or municipal law enforcement agency;

8 8. Enter into contracts and agreements for the payment of
9 classroom space, food, and lodging expenses as may be necessary for
10 law enforcement officers attending any official course of
11 instruction approved or conducted by the Council. Such expenses may
12 be paid directly to the contracting agency or business
13 establishment. The food and lodging expenses for each law
14 enforcement officer shall not exceed the authorized rates as
15 provided for in the State Travel Reimbursement Act; provided,
16 however, the Council may provide food and lodging to law enforcement
17 officials attending any official course of instruction approved or
18 conducted by the Council rather than paying for the provision of
19 such food and lodging by an outside contracting agency or business
20 establishment;

21 9. a. Certify canine teams, consisting of a dog and a
22 handler working together as a team, trained to detect:
23 (1) controlled dangerous substances, or
24

1 (2) explosives, explosive materials, explosive
2 devices, or materials which could be used to
3 construct an explosive device;

4 provided, the dog of a certified canine team shall not
5 be certified at any time as both a drug dog and a bomb
6 dog, and any dog of a certified canine team who has
7 been previously certified as either a drug dog or a
8 bomb dog shall not be eligible at any time to be
9 certified in the other category.

10 b. Upon retiring the dog from the service it was
11 certified to perform, the law enforcement department
12 that handled the dog shall retain possession of the
13 dog. The handler shall have first option of adopting
14 the dog. If that option is not exercised, the law
15 enforcement department shall provide for its adoption.
16 Once adopted the dog shall not be placed back into
17 active service;

18 10. Enter into a lease, loan or other agreement with the
19 Oklahoma Development Finance Authority or a local public trust for
20 the purpose of facilitating the financing of a new facility for its
21 operations and use and pledge, to the extent authorized by law, all
22 or a portion of its receipts of the assessment penalty herein
23 referenced for the payment of its obligations under such lease, loan
24 or other agreement. It is the intent of the Legislature to increase

1 the assessment penalty to such a level or appropriate sufficient
2 monies to the Council on Law Enforcement Education and Training to
3 make payments on the lease, loan or other agreement for the purpose
4 of retiring the bonds to be issued by the Oklahoma Development
5 Finance Authority or local public trust. Such lease, loan or other
6 agreement and the bonds issued to finance such facilities shall not
7 constitute an indebtedness of this state or be backed by the full
8 faith and credit of this state, and the lease, loan or other
9 agreement and the bonds shall contain a statement to such effect;

10 11. Accept gifts, bequests, devises, contributions and grants,
11 public or private, of real or personal property;

12 12. Appoint an advisory committee composed of representatives
13 from security guard and private investigative agencies to advise the
14 Council concerning necessary research, minimum standards for
15 licensure, education, and other matters related to licensure of
16 security guards, security guard agencies, private investigators, and
17 private investigative agencies;

18 13. Enter into agreements with individuals, educational
19 institutions, agencies, and business and tribal entities for
20 professional services, the use of facilities and supplies, and staff
21 overtime costs incurred as a result of the user's requests to
22 schedule functions after-hours, on weekends, or anytime such
23 requests extend staff beyond its normal capacity, whereby
24 contracting individuals, educational institutions, agencies, and

1 business and tribal entities shall pay a fee to be determined by the
2 Council by rule. All fees collected pursuant to facilities usage
3 shall be deposited to the credit of the C.L.E.E.T. Training Center
4 Revolving Fund created pursuant to Section 3311.6 of this title.
5 All other fees collected pursuant to these agreements shall be
6 deposited to the credit of the Peace Officer Revolving Fund created
7 pursuant to Section 3311.7 of this title. The Council is authorized
8 to promulgate emergency rules to effectuate the provisions of this
9 paragraph;

10 14. Promulgate rules to establish a state firearms
11 requalification standard for active peace officers and meet any
12 requirements imposed on the Council by the federal Law Enforcement
13 Officers Safety Act of 2004;

14 15. Set minimal criteria relating to qualifications for chief
15 of police administrative training pursuant to Section 34-102 of
16 Title 11 of the Oklahoma Statutes, assist in developing a course of
17 training for a Police Chief Administrative School, and approve all
18 police chief administrative training offered in this state;

19 16. Appoint a Curriculum Review Board to be composed of six (6)
20 members as follows:

- 21 a. one member shall be selected by the Chancellor for
22 Higher Education, who possesses a background of
23 creation and review of curriculum and experience
24

- 1 teaching criminal justice or law enforcement courses,
2 who shall serve an initial term of one (1) year,
- 3 b. one member shall represent a municipal jurisdiction
4 with a population of fifty thousand (50,000) or more
5 as determined by the latest Federal Decennial Census
6 and who shall be a management-level CLEET-certified
7 training officer, who shall serve an initial term of
8 two (2) years,
- 9 c. one member shall represent a county jurisdiction with
10 a population of fifty thousand (50,000) or more as
11 determined by the latest Federal Decennial Census and
12 who shall be a management-level CLEET-certified
13 training officer, who shall serve an initial term of
14 three (3) years,
- 15 d. one member shall represent a municipal jurisdiction
16 with a population of less than fifty thousand (50,000)
17 and who shall be a CLEET-certified training officer,
18 who shall serve an initial term of two (2) years,
- 19 e. one member shall represent a county jurisdiction with
20 a population of less than fifty thousand (50,000) and
21 who shall be a CLEET-certified training officer, who
22 shall serve an initial term of one (1) year, and
- 23 f. one member selected by the Oklahoma Department of
24 Career and Technology Education, who shall have

1 experience in the creation and review of curriculum as
2 well as experience in teaching criminal justice or law
3 enforcement courses, who shall serve an initial term
4 of three (3) years.

5 After the initial terms of office, all members shall be
6 appointed to serve three-year terms. Any member may be reappointed
7 to serve consecutive terms. Members shall serve without
8 compensation, but may be reimbursed for travel expenses pursuant to
9 the State Travel Reimbursement Act. The Board shall review and
10 establish curriculum for all CLEET academies and training courses
11 pursuant to procedures established by the Council on Law Enforcement
12 Education and Training;

13 17. Conduct review and verification of any records relating to
14 the statutory duties of CLEET;

15 18. Receive requested reports including investigative reports,
16 court documents, statements, or other applicable information from
17 local, county and state agencies and other agencies for use in
18 actions where a certification or license issued by CLEET may be
19 subject to disciplinary or other actions provided by law;

20 19. Summarily suspend a certification of a peace officer,
21 without prior notice but otherwise subject to administrative
22 proceedings, if CLEET finds that the actions of the certified peace
23 officer may present a danger to the peace officer, the public, a
24 family or household member, or involve a crime against a minor. A

1 certified copy of the information or indictment charging such a
2 crime shall be considered clear and convincing evidence of the
3 charge; and

4 20. Approve law enforcement agencies and police departments in
5 accordance with the following:

6 a. this section applies only to an entity authorized by
7 statute or by the Constitution to create a law
8 enforcement agency or police department and
9 commission, appoint, or employ officers that first
10 creates or reactivates an inactive law enforcement
11 agency or police department and first begins to
12 commission, appoint, or employ officers on or after
13 November 1, 2011,

14 b. the entity shall submit to CLEET, a minimum of sixty
15 (60) days prior to creation of the law enforcement
16 agency or police department, information regarding:
17 (1) the need for the law enforcement agency or police
18 department in the community,
19 (2) the funding sources for the law enforcement
20 agency or police department, and proof that no
21 more than fifty percent (50%) of the funding of
22 the entity will be derived from ticket revenue or
23 fines,
24 (3) the physical resources available to officers,

- 1 (4) the physical facilities that the law enforcement
2 agency or police department will operate
3 including descriptions of the evidence room,
4 dispatch area, restroom facilities, and public
5 area,
- 6 (5) law enforcement policies of the law enforcement
7 agency or police department including published
8 policies on:
- 9 (a) use of force,
 - 10 (b) vehicle pursuit,
 - 11 (c) mental health,
 - 12 (d) professional conduct of officers,
 - 13 (e) domestic abuse,
 - 14 (f) response to missing persons,
 - 15 (g) supervision of part-time officers, and
 - 16 (h) impartial policing,
- 17 (6) the administrative structure of the law
18 enforcement agency or police department,
- 19 (7) liability insurance, and
- 20 (8) any other information CLEET requires by rule,
- 21 c. within sixty (60) days of receiving an entity's
22 request, CLEET will forward to the entity by certified
23 mail, return receipt requested, a letter of
24 authorization or denial to create a law enforcement

1 agency or police department and commission, appoint,
2 or employ officers, signed by the Executive Director
3 of CLEET, and

4 d. in cases of denial, the entity may appeal the decision
5 of the Executive Director to the full CLEET Council.

6 The Executive Director shall ensure that the final
7 report is provided to all members of the Council. The
8 Council shall review and make recommendations
9 concerning the report at the first meeting of the
10 Council to occur after all members of the Council have
11 received the report. The Council may, by majority
12 vote:

13 (1) order additional information be provided,

14 (2) order confirmation of the opinion of the
15 Executive Director, or

16 (3) order authorization of the entity.

17 C. 1. Payment of any fee provided for in this section may be
18 made by a nationally recognized credit or debit card issued to the
19 applicant. The Council may publicly post and collect a fee for the
20 acceptance of the nationally recognized credit or debit card not to
21 exceed five percent (5%) of the amount of the payment. For purposes
22 of this subsection, "nationally recognized credit card" means any
23 instrument or device, whether known as a credit card, credit plate,
24 charge plate, or by any other name, issued with or without fee by an

1 issuer for the use of the cardholder in obtaining goods, services,
2 or anything else of value and which is accepted by over one thousand
3 merchants in this state. "Debit card" means an identification card
4 or device issued to a person by a business organization which
5 permits such person to obtain access to or activate a consumer
6 banking electronic facility. The Council shall determine which
7 nationally recognized credit or debit cards will be accepted as
8 payment for fees.

9 2. Payment for any fee provided for in this title may be made
10 by a business check. The Council may:

11 a. add an amount equal to the amount of the service
12 charge incurred, not to exceed three percent (3%) of
13 the amount of the check as a service charge for the
14 acceptance and verification of the check, or

15 b. add an amount of no more than Five Dollars (\$5.00) as
16 a service charge for the acceptance and verification
17 of a check. For purposes of this subsection,
18 "business check" shall not mean a money order,
19 cashier's check, or bank-certified check.

20 D. Failure of the Legislature to appropriate necessary funds to
21 provide for expenses and operations of the Council on Law
22 Enforcement Education and Training shall not invalidate other
23 provisions of this section relating to the creation and duties of
24 the Council.

1 E. 1. No person shall be eligible for employment as a peace
2 officer or reserve peace officer until the employing law enforcement
3 agency has conducted a background investigation of such person
4 consisting of the following:

5 a. a fingerprint search submitted to the Oklahoma State
6 Bureau of Investigation with a return report to the
7 submitting agency that such person has no felony
8 record,

9 b. a fingerprint search submitted to the Federal Bureau
10 of Investigation with a return report to the
11 submitting agency that such person has no felony
12 record,

13 c. such person has undergone psychological evaluation by
14 a psychologist licensed by the State of Oklahoma and
15 has been evaluated to be suitable to serve as a peace
16 officer in the State of Oklahoma,

17 d. the employing agency has verified that such person has
18 a high school diploma or a GED equivalency certificate
19 as recognized by state law,

20 e. such person is not participating in a deferred
21 sentence agreement for a felony, a crime involving
22 moral turpitude or a crime of domestic violence, and
23 does not have any criminal charges pending in any
24

1 court in this state, another state, in tribal court or
2 pursuant to the United States Code,

3 f. such person is not currently subject to an order of
4 the Council revoking, suspending, or accepting a
5 voluntary surrender of peace officer certification,

6 g. such person is not currently undergoing treatment for
7 a mental illness, condition or disorder. For purposes
8 of this subsection, "currently undergoing treatment
9 for mental illness, condition or disorder" means the
10 person has been diagnosed by a licensed physician,
11 psychologist, or licensed mental health professional
12 as being afflicted with a substantial disorder of
13 thought, mood, perception, psychological orientation
14 or memory that significantly impairs judgment,
15 behavior, capacity to recognize reality, or ability to
16 meet the ordinary demands of life and such condition
17 continues to exist,

18 h. such person is twenty-one (21) years of age.

19 Provided, this requirement shall not affect those
20 persons who are already employed as a police or peace
21 officer prior to November 1, 1985, and

22 i. such person has provided proof of United States
23 citizenship or resident alien status, pursuant to an
24

1 employment eligibility verification form from the
2 United States Citizenship and Immigration Services.

3 2. To aid the evaluating psychologist in interpreting the test
4 results including automated scoring and interpretations, the
5 employing agency shall provide the psychologist a statement
6 confirming the identity of the individual taking the test as the
7 person who is employed or seeking employment as a peace officer of
8 the agency and attesting that it administered the psychological
9 instrument in accordance with standards within the test document.
10 The psychologist shall report to the employing agency the evaluation
11 of the assessment instrument and may include any additional
12 recommendations to assist the employing agency in determining
13 whether to certify to the Council on Law Enforcement Education and
14 Training that the person being evaluated is suitable to serve as a
15 peace officer in this state. No additional procedures or
16 requirements shall be imposed for performance of the psychological
17 evaluation. The psychological instrument utilized shall be
18 evaluated by a psychologist licensed by the State of Oklahoma, and
19 the employing agency shall certify to the Council that the
20 evaluation was conducted in accordance with this provision and that
21 the employee or applicant is suitable to serve as a peace officer in
22 this state.

23 a. Any person found not to be suitable for employment or
24 certification by the Council shall not be employed,

1 retained in employment as a peace officer, or
2 certified by the Council for at least one (1) year, at
3 which time the employee or applicant may be
4 reevaluated by a psychologist licensed by the State of
5 Oklahoma. This section shall also be applicable to
6 all reserve peace officers in this state.

7 b. Any person who is certified by CLEET and has undergone
8 the psychological evaluation required by this
9 subparagraph and has been found to be suitable as a
10 peace officer shall not be required to be reevaluated
11 for any subsequent employment as a peace officer
12 following retirement or any break in service as a
13 peace officer, unless such break in service exceeds
14 five (5) years or the Council determines that a peace
15 officer may present a danger to himself or herself,
16 the public, or a family or household member.

17 c. All persons seeking certification shall have their
18 name, gender, date of birth, and address of such
19 person submitted to the Department of Mental Health
20 and Substance Abuse Services by the Council. The
21 Department of Mental Health and Substance Abuse
22 Services shall respond to the Council within ten (10)
23 days whether the computerized records of the
24 Department indicate the applicant has ever been

1 involuntarily committed to an Oklahoma state mental
2 institution. In the event that the Department of
3 Mental Health and Substance Abuse Services reports to
4 the Council that the applicant has been involuntarily
5 committed, the Council shall immediately inform the
6 employing agency.

7 All basic police courses shall include a minimum of four (4)
8 hours of education and training in recognizing and managing a person
9 appearing to require mental health treatment or services. The
10 training shall include training in crime and drug prevention, crisis
11 intervention, youth and family intervention techniques, recognizing,
12 investigating and preventing abuse and exploitation of elderly
13 persons, mental health issues, and criminal jurisdiction on
14 Sovereign Indian Land.

15 Subject to the availability of funding, for full-time salaried
16 police or peace officers a basic police course academy shall consist
17 of a minimum of six hundred (600) hours.

18 For reserve deputies a basic reserve academy shall consist of a
19 minimum of two hundred forty (240) hours.

20 3. Beginning January 1, 2018, any reserve peace officer who has
21 completed the two-hundred-forty-hour reserve peace officer
22 certification program and who has been in active service in that
23 capacity for the past six (6) months shall be eligible to attend a
24

1 three-hundred-sixty-hour basic full-time training academy to become
2 certified as a full-time peace or police officer.

3 4. Every person who has not been certified as a police or peace
4 officer and is duly appointed or elected as a police or peace
5 officer shall hold such position on a temporary basis only, and
6 shall, within six (6) months from the date of appointment or taking
7 office, qualify as required in this subsection or forfeit such
8 position. In computing the time for qualification, all service
9 shall be cumulative from date of first appointment or taking office
10 as a police or peace officer with any department in this state.

11 a. The Council may extend the time requirement specified
12 in this paragraph for good cause as determined by the
13 Council.

14 b. A duty is hereby imposed upon the employing agency to
15 withhold payment of the compensation or wage of such
16 unqualified officer.

17 c. If the police or peace officer fails to forfeit the
18 position or the employing agency fails to require the
19 officer to forfeit the position, the district attorney
20 shall file the proper action to cause the forfeiting
21 of such position. The district court of the county
22 where the officer is employed shall have jurisdiction
23 to hear the case.

1 5. The Council may certify officers who have completed a course
2 of study in another state deemed by the Council to meet standards
3 for Oklahoma peace officers providing the officer's certification in
4 the other state has not been revoked or voluntarily surrendered and
5 is not currently under suspension.

6 6. For purposes of this section, a police or peace officer is
7 defined as a full-time duly appointed or elected officer who is paid
8 for working more than twenty-five (25) hours per week and whose
9 duties are to preserve the public peace, protect life and property,
10 prevent crime, serve warrants, transport prisoners, and enforce laws
11 and ordinances of this state, or any political subdivision thereof;
12 provided, elected sheriffs and their deputies and elected,
13 appointed, or acting chiefs of police shall meet the requirements of
14 this subsection within the first six (6) months after assuming the
15 duties of the office to which they are elected or appointed or for
16 which they are an acting chief; provided further, that this section
17 shall not apply to persons designated by the Director of the
18 Department of Corrections as peace officers pursuant to Section 510
19 of Title 57 of the Oklahoma Statutes.

20 F. No person shall be certified as a police or peace officer by
21 the Council or be employed by the state, a county, a city, or any
22 political subdivision thereof, who is currently subject to an order
23 of the Council revoking, suspending, or accepting a voluntary
24 surrender of peace officer certification or who has been convicted

1 of a felony, a crime involving moral turpitude, or a crime of
2 domestic violence, unless a full pardon has been granted by the
3 proper agency; however, any person who has been trained and
4 certified by the Council on Law Enforcement Education and Training
5 and is actively employed as a full-time peace officer as of November
6 1, 1985, shall not be subject to the provisions of this subsection
7 for convictions occurring prior to November 1, 1985.

8 G. 1. The Council is hereby authorized to provide to any
9 employing agency the following information regarding a person who is
10 or has applied for employment as a police or peace officer of such
11 employing agency:

- 12 a. Oklahoma State Bureau of Investigation and Federal
13 Bureau of Investigation reports,
- 14 b. administration of the psychological tests provided for
15 herein,
- 16 c. performance in the course of study or other basis of
17 certification,
- 18 d. previous certifications issued, and
- 19 e. any administrative or judicial determination denying
20 certification.

21 2. An employing agency shall not be liable in any action
22 arising out of the release of contents of personnel information
23 relevant to the qualifications or ability of a person to perform the
24 duties of a police or peace officer when such information is

1 released pursuant to written authorization for release of
2 information signed by such person and is provided to another
3 employing agency which has employed or has received an application
4 for employment from such person.

5 3. As used in this subsection, "employing agency" means a
6 political subdivision or law enforcement agency which either has
7 employed or received an employment application from a person who, if
8 employed, would be subject to this section.

9 H. 1. A law enforcement agency employing police or peace
10 officers in this state shall report the hiring, resignation, or
11 termination for any reason of a police or peace officer to the
12 Council within ten (10) days. Failure to comply with the provisions
13 of this subsection may disqualify a law enforcement agency from
14 participating in training programs sponsored by the Council. Every
15 law enforcement agency employing police or peace officers in this
16 state shall submit to CLEET on or before October 1 of each calendar
17 year a complete list of all commissioned employees with a current
18 mailing address and phone number for each such employee. In
19 addition to the above, CLEET may impose an administrative fine for
20 violations of this section.

21 2. A tribal law enforcement agency that has peace officers
22 commissioned by an Oklahoma law enforcement agency pursuant to a
23 cross-deputization agreement with the State of Oklahoma or any
24 political subdivision of the State of Oklahoma pursuant to the

1 provisions of Section 1221 of Title 74 of the Oklahoma Statutes
2 shall report the commissioning, resignation, or termination of
3 commission for any reason of a cross-deputized tribal police or
4 peace officer to CLEET within ten (10) days of the commissioning,
5 resignation, or termination. Failure to comply with the provisions
6 of this subsection may disqualify a tribal law enforcement agency
7 from participating in training programs sponsored by the Council.

8 I. It is unlawful for any person to willfully make any
9 statement in an application to CLEET knowing the statement is false
10 or intentionally commit fraud in any application to the Council for
11 attendance in any CLEET-conducted or CLEET-approved peace officer
12 academy or Collegiate Officer Program or for the purpose of
13 obtaining peace officer certification or reinstatement. It is
14 unlawful for any person to willfully submit false or fraudulent
15 documents relating to continuing education rosters, transcripts or
16 certificates, or any canine license application. Any person
17 convicted of a violation of this subsection shall be guilty of a
18 felony punishable by imprisonment in the Department of Corrections
19 for a term of not less than two (2) years nor more than five (5)
20 years, or by a fine not exceeding Two Thousand Dollars (\$2,000.00),
21 or by both such fine and imprisonment. In addition to the above,
22 CLEET may impose an administrative fine.

23 J. 1. A police or peace officer shall be subject to
24 disciplinary action to include a denial, suspension, revocation or

1 acceptance of voluntary surrender of peace officer certification
2 upon a showing of clear and convincing evidence for the following:

- 3 a. conviction of a felony or a crime of domestic
4 violence,
- 5 b. conviction of a misdemeanor involving moral turpitude;
6 provided, if the conviction is a single isolated
7 incident that occurred more than five (5) years ago
8 and the Council is satisfied that the person has been
9 sufficiently rehabilitated, the Council may, in its
10 discretion, certify such person providing that all
11 other statutory requirements have been met,
- 12 c. a verdict of guilt or entry of a plea of guilty or
13 nolo contendere or an "Alford" plea or any plea other
14 than a not guilty plea for a felony offense, a crime
15 of moral turpitude, or a crime of domestic violence,
- 16 d. falsification or a willful misrepresentation of
17 information in an employment application or
18 application to the Council on Law Enforcement
19 Education and Training, records of evidence, or in
20 testimony under oath,
- 21 e. revocation or voluntary surrender of police or peace
22 officer certification in another state for a violation
23 of any law or rule or in settlement of any
24 disciplinary action in such state,

1 f. involuntary commitment of a reserve or peace officer
2 in a mental institution or licensed private mental
3 health facility for any mental illness, condition or
4 disorder that is diagnosed by a licensed physician,
5 psychologist or a licensed mental health professional
6 as a substantial disorder of thought, mood,
7 perception, psychological orientation, or memory that
8 significantly impairs judgment, behavior, capacity to
9 recognize reality, or ability to meet the ordinary
10 demands of life. Provided, the peace officer
11 certification may be reinstated upon the Council
12 receiving notification of a psychological evaluation
13 conducted by a licensed physician, psychologist or
14 licensed mental health professional which attests and
15 states by affidavit that the officer and the
16 evaluation test data of the officer have been examined
17 and that, in the professional opinion of the
18 physician, psychologist or licensed mental health
19 professional, the officer is psychologically suitable
20 to return to duty as a peace officer. Notwithstanding
21 any other provision of state law pertaining to
22 confidentiality of hospital or other medical records,
23 and as allowable under federal law, CLEET may subpoena
24 or request a court to subpoena records necessary to

1 assure compliance with these provisions. Any
2 confidential information received by CLEET for such
3 purpose shall retain its confidential character while
4 in the possession of CLEET,

5 g. abuse of office,

6 h. entry of a final order of protection against applicant
7 or officer, or

8 i. any violation of the Oklahoma Private Security
9 Licensing Act.

10 2. Disciplinary proceedings shall be commenced by filing a
11 complaint with the Council on a form approved by the Council. Any
12 employing agency or other person having information may submit such
13 information to the Council for consideration as provided in this
14 subsection.

15 3. Upon the filing of the complaint, a preliminary
16 investigation shall be conducted to determine whether:

17 a. there is reason to believe the person has violated any
18 provision of this subsection or any other provision of
19 law or rule, or

20 b. there is reason to believe the person has been
21 convicted of a felony, a crime involving moral
22 turpitude or a domestic violence offense or is
23 currently participating in a deferred sentence for
24 such offenses.

1 4. When the investigation of a complaint does not find the
2 person has violated any of the provisions of this subsection, or
3 finds that the person is sufficiently rehabilitated as provided in
4 subparagraph b or f of paragraph 1 of this subsection, no
5 disciplinary action shall be required and the person shall remain
6 certified as a police or peace officer. When the investigation of a
7 complaint finds that the person has violated any of the provisions
8 of this subsection, the matter shall be referred for disciplinary
9 proceedings. The disciplinary proceedings shall be in accordance
10 with Articles I and II of the Administrative Procedures Act.

11 5. The Council shall revoke the certification of any person
12 upon determining that such person has been convicted of a felony or
13 a crime involving moral turpitude or a domestic violence offense or
14 has entered a plea of guilty, or nolo contendere or an "Alford" plea
15 or any plea other than a not guilty plea for a felony offense, a
16 crime of moral turpitude or a crime of domestic violence or is the
17 respondent in a final victim protective order; provided, that if the
18 conviction has been reversed, vacated or otherwise invalidated by an
19 appellate court, such conviction shall not be the basis for
20 revocation of certification; provided further, that any person who
21 has been trained and certified by the Council on Law Enforcement
22 Education and Training and is actively employed as a full-time peace
23 officer as of November 1, 1985, shall not be subject to the
24 provisions of this subsection for convictions occurring prior to

1 November 1, 1985. The sole issue to be determined at the hearing
2 shall be whether the person has been convicted of a felony, a crime
3 involving moral turpitude or a domestic violence offense or is the
4 named respondent/defendant in a final victim protective order.

5 6. The Council shall revoke the certification of any person
6 upon determining that such person has received a deferred sentence
7 for a felony, a crime involving moral turpitude or a domestic
8 violence offense.

9 7. The Council may suspend the certification of any person upon
10 a determination that such person has been involuntarily committed to
11 a mental institution or mental health facility for a mental illness,
12 condition or disorder as provided in subparagraph f of paragraph 1
13 of this subsection.

14 8. Every law enforcement agency in this state shall, within
15 thirty (30) days of a final order of termination or resignation
16 while under investigation of a CLEET-certified peace officer, report
17 such order or resignation in writing to the Executive Director of
18 the Council. Any report, upon receipt by the Council, shall be
19 considered as personnel records and shall be afforded confidential
20 protection pursuant to Sections 24A.7 and 24A.8 of Title 51 of the
21 Oklahoma Statutes. Any medical or other confidential records
22 obtained by subpoena pursuant to this subsection shall not be made a
23 part of such report. The Executive Director shall ensure that the
24 report is provided to all members of the Council. The Council shall

1 review and make recommendations concerning the report at the first
2 meeting of the Council to occur after all members of the Council
3 have received the report. The Council may, by a majority vote,
4 order the suspension, for a given period of time, or revocation of
5 the CLEET certification of the peace officer in question if there
6 are grounds for such actions pursuant to this section and the peace
7 officer in question has been provided with notice and an opportunity
8 for a hearing pursuant to the Administrative Procedures Act.

9 Suspension or revocation of CLEET certification pursuant to this
10 paragraph shall be reported to the district attorney for the
11 jurisdiction in which the peace officer was employed, to the
12 liability insurance company of the law enforcement agency that
13 employed the peace officer, the chief elected official of the
14 governing body of the law enforcement agency and the chief law
15 enforcement officer of the law enforcement agency.

16 9. For all other violations of this subsection, the hearing
17 examiner shall take into consideration the severity of the
18 violation, any mitigating circumstances offered by the person
19 subject to disciplinary action, and any other evidence relevant to
20 the person's character to determine the appropriate disciplinary
21 action.

22 10. a. A police or peace officer may voluntarily surrender
23 and relinquish the peace officer certification to
24 CLEET. Pursuant to such surrender or relinquishment,

1 the person surrendering the certification shall be
2 prohibited from applying to CLEET for reinstatement
3 within five (5) years of the date of the surrender or
4 relinquishment, unless otherwise provided by law for
5 reinstatement.

6 b. No person who has had a police or peace officer
7 certification from another state revoked or
8 voluntarily surrendered and has not been reinstated by
9 that state shall be considered for certification by
10 CLEET.

11 c. Any person seeking reinstatement of police or peace
12 officer certification which has been suspended,
13 revoked, or voluntarily surrendered may apply for
14 reinstatement pursuant to promulgated CLEET rules
15 governing reinstatement. Except as provided in this
16 subsection, any person whose certification has been
17 revoked, suspended or voluntarily surrendered for any
18 reason including failure to comply with mandatory
19 education and training requirements, shall pay a
20 reinstatement fee of One Hundred Fifty Dollars
21 (\$150.00) to be deposited to the credit of the Peace
22 Officer Revolving Fund created pursuant to Section
23 3311.7 of this title.
24

1 11. A duty is hereby imposed upon the district attorney who, on
2 behalf of the State of Oklahoma, prosecutes a person holding police
3 or peace officer or reserve peace officer certification for a
4 felony, a crime involving moral turpitude, or a crime of domestic
5 violence in which a plea of guilty, nolo contendere, or an "Alford"
6 plea or any other plea other than a not guilty plea or other finding
7 of guilt is entered by, against or on behalf of a certified police
8 or peace officer to report such plea, agreement, or other finding of
9 guilt to the Council on Law Enforcement Education and Training
10 within ten (10) days of such plea agreement or the finding of guilt.

11 12. Any person or agency required or authorized to submit
12 information pursuant to this section to the Council shall be immune
13 from liability arising from the submission of the information as
14 long as the information was submitted in good faith and without
15 malice.

16 13. Any peace officer employed by a law enforcement agency in
17 this state which has internal discipline policies and procedures on
18 file with CLEET shall be exempt from the disciplinary proceedings
19 and actions provided for in this subsection; provided, however, such
20 exemption shall not apply if the peace officer has been convicted of
21 a felony crime, a crime of moral turpitude, or a crime of domestic
22 violence.

23 14. All criminal proceedings initiated against a CLEET-
24 certified peace officer or reserve peace officer shall be reported

1 by the officer to CLEET immediately after arrest or discovery of the
2 filing of such criminal proceeding. All CLEET-certified peace
3 officers and reserve peace officers shall be required to report when
4 a victim protective order has been issued against the officer
5 including orders issued on an emergency basis and all final orders
6 of protection. Failure to give notice pursuant to the provisions of
7 this paragraph may be cause to initiate an action against the
8 officer by CLEET.

9 15. As used in this subsection:

- 10 a. "law enforcement agency" means any department or
11 agency of the state, a county, a municipality, or
12 political subdivision thereof, with the duties to
13 maintain public order, make arrests, and enforce the
14 criminal laws of this state or municipal ordinances,
15 which employs CLEET-certified personnel,
- 16 b. "final order of termination" means a final notice of
17 dismissal from employment provided after all
18 grievance, arbitration, and court actions have been
19 completed, and
- 20 c. "resignation while under investigation" means the
21 resignation from employment of a peace officer who is
22 under investigation for any felony violation of law, a
23 crime of moral turpitude, a crime of domestic
24 violence, or the resignation from employment of a

1 peace officer as part of an arbitration or plea
2 agreement.

3 K. 1. Every canine team in the state trained to detect
4 controlled dangerous substances shall be certified, by test, in the
5 detection of such controlled dangerous substances and shall be
6 recertified annually so long as the canine is used for such
7 detection purposes. The certification test and annual
8 recertification test provisions of this subsection shall not be
9 applicable to canines that are owned by a law enforcement agency and
10 that are certified and annually recertified in the detection of
11 controlled dangerous substances by the ~~United States Customs Service~~
12 United States Customs and Border Protection. No employee of CLEET
13 may be involved in the training or testing of a canine team.

14 2. The Council shall appoint a Drug Dog Advisory Council to
15 make recommendations concerning minimum standards, educational
16 needs, and other matters imperative to the certification of canines
17 and canine teams trained to detect controlled dangerous substances.
18 The Council shall promulgate rules based upon the recommendations of
19 the Advisory Council. Members of the Advisory Council shall
20 include, but need not be limited to, a commissioned officer with
21 practical knowledge of such canines and canine teams from each of
22 the following:

23 a. the Oklahoma State Bureau of Narcotics and Dangerous
24 Drugs Control,

- b. the Department of Public Safety,
- c. a police department,
- d. a sheriff's office, and
- e. a university or college campus police department.

3. The fee for the certification test shall be Two Hundred Dollars (\$200.00) and the annual recertification test fee shall be One Hundred Dollars (\$100.00) per canine team. A retest fee of Fifty Dollars (\$50.00) will be charged if the team fails the test. No such fee shall be charged to any local, state or federal government agency. The fees provided for in this paragraph shall be deposited to the credit of the CLEET Fund created pursuant to Section 1313.2 of Title 20 of the Oklahoma Statutes.

L. 1. Every canine team in the state trained to detect explosives, explosive materials, explosive devices, and materials which could be used to construct an explosive device shall be certified, by test, in the detection of such explosives and materials and shall be recertified annually so long as the canine is used for such detection purposes. The certification test and annual recertification test provisions of this subsection shall not be applicable to canines that are owned by a law enforcement agency if such canines are certified and annually recertified in the detection of explosives and materials by the United States Department of Defense. No employee of CLEET may be involved in the training or testing of a canine team.

1 2. The Council shall appoint a Bomb Dog Advisory Council to
2 make recommendations concerning minimum standards, educational
3 needs, and other matters imperative to the certification of canines
4 and canine teams trained to detect explosives, explosive materials,
5 explosive devices and materials which could be used to construct an
6 explosive device. The Council shall promulgate rules based upon the
7 recommendations of the Advisory Council. Members of the Advisory
8 Council shall include, but need not be limited to, a commissioned
9 officer with practical knowledge of such canines and canine teams
10 from each of the following:

- 11 a. the Department of Public Safety,
- 12 b. a police department,
- 13 c. a sheriff's office, and
- 14 d. a university or college campus police department.

15 3. The fee for the certification test shall be Two Hundred
16 Dollars (\$200.00) and the annual recertification test fee shall be
17 One Hundred Dollars (\$100.00) per canine team. A retest fee of
18 Fifty Dollars (\$50.00) will be charged if the team fails the test.
19 No such fee shall be charged to any local, state or federal
20 government agency. The fees provided for in this paragraph shall be
21 deposited to the credit of the CLEET Fund created pursuant to
22 Section 1313.2 of Title 20 of the Oklahoma Statutes.

23 M. All tribal police officers of any Indian tribe or nation who
24 have been commissioned by an Oklahoma law enforcement agency

1 pursuant to a cross-deputization agreement with the State of
2 Oklahoma or any political subdivision of the State of Oklahoma
3 pursuant to the provisions of Section 1221 of Title 74 of the
4 Oklahoma Statutes shall be eligible for peace officer certification
5 under the same terms and conditions required of members of the law
6 enforcement agencies of the State of Oklahoma and its political
7 subdivisions. CLEET shall issue peace officer certification to
8 tribal police officers who, as of July 1, 2003, are commissioned by
9 an Oklahoma law enforcement agency pursuant to a cross-deputization
10 agreement with the State of Oklahoma or any political subdivision of
11 the State of Oklahoma pursuant to the provisions of Section 1221 of
12 Title 74 of the Oklahoma Statutes and have met the training and
13 qualification requirements of this section.

14 N. If an employing law enforcement agency in this state has
15 paid for CLEET training and the salary of a person while that person
16 is completing in this state a basic police course approved by the
17 Council and if within one (1) year after the date the person is
18 commissioned with the law enforcement agency that person resigns and
19 is hired by another law enforcement agency in this state, the second
20 law enforcement agency or the person receiving the training shall
21 reimburse the original employing law enforcement agency for the cost
22 of CLEET training and salary paid to the person while completing the
23 basic police course by the original employing law enforcement
24 agency. If the person leaves the original employing law enforcement

1 agency later than one (1) year, but less than two (2) years, after
2 the date the person is commissioned with the law enforcement agency,
3 the second law enforcement agency or the person receiving the
4 training shall reimburse the original employing law enforcement
5 agency fifty percent (50%) of the cost of CLEET training and salary
6 paid to the person while completing the basic police course by the
7 original employing law enforcement agency. CLEET shall not be a
8 party to any court action based on this provision.

9 O. The Council on Law Enforcement Education and Training, in
10 its discretion, may waive all or part of any moneys due to the
11 Council, if deemed uncollectable by the Council.

12 P. Peace officers, reserve peace officers, tribal peace
13 officers, agencies, bail enforcers, security guards and private
14 investigators shall maintain with the Council current mailing
15 addresses and shall notify the Council, in writing, of any change of
16 address or name. Notification of change of name shall require
17 certified copies of any marriage license or other court document
18 which reflects the change of name. Notice of change of address or
19 telephone number must be made within ten (10) days of the effected
20 change. Notices shall not be accepted over the phone. In any
21 proceeding in which the Council is required to serve notice or an
22 order on an individual or an agency, the Council may send a letter
23 to the mailing address on file with the Council. If the letter is
24 returned and a notation of the U.S. Postal Service indicates

1 "unclaimed", or "moved", or "refused" or any other nondelivery
2 markings and the records of the Council indicate that no change of
3 address as required by this subsection has been received by the
4 Council, the notice and any subsequent notices or orders shall be
5 deemed by the Court as having been legally served for all purposes.

6 Q. All CLEET records of bail enforcers may be released only in
7 compliance with this section and the Bail Enforcement and Licensing
8 Act. All records in CLEET possession concerning other persons or
9 entities shall be released only in compliance with this section and
10 the Oklahoma Open Records Act.

11 SECTION 2. This act shall become effective November 1, 2026.

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